

HOUSE No. 5291

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 25, 2026.

The committee on Telecommunications, Utilities and Energy, to whom was referred the petition (accompanied by bill, House, No. 3499) of Danielle W. Gregoire that the Department of Energy Resources ensure equity, accessibility, and promote participation by renters and low-income retail electric customers in the solar incentive program, reports recommending that the accompanying bill (House, No. 5291) ought to pass.

For the committee,

MARK J. CUSACK.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote low-income access to solar.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 25A of the General Laws, as appearing in the 2024 Official Edition, is hereby
2 amended by adding the following section:

3 Section 22.

4 (a) Notwithstanding any general or special law to the contrary, the department shall
5 ensure equity, accessibility, and promote participation by renters and low-income retail electric
6 customers in the solar incentive program established in section 11 of chapter 75 of the acts of
7 2016, and in any successor solar incentive program.

8 (b) For the purposes of any such solar incentive program, a low-income multi-residential
9 building shall qualify as one Low Income Customer if such building:

10 (i) meets the definition of low or moderate income housing pursuant to chapter 40B,
11 section 20; or

12 (ii) receives an allocation of federal low-income housing tax credits pursuant to section
13 42 of the Internal Revenue Code.

14 (c) A building qualifying under subsection (b) shall be treated as a single Low Income
15 Customer without regard to the number of dwelling units, utility meters, or accounts located
16 therein, and electric distribution companies shall administer billing credits, incentive eligibility,
17 and capacity allocations consistent with this section.